

AUTO RITE IT  
PERSONAL DATA

The Minister for Legal Protection

Mr. Drs. S. Dekker

P.O. Box 20301

2500 EH The Hague

Date

December 9, 2021

Subject

Our reference

22021-09745

Contact person

Dutch Data Protection Authority

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Your letter dated

May 17, 2021

Your reference

3296334

Advice regarding the proposal to amend the Police Data Decision for the implementation of Directive (EU) 2019/1153

Dear Mr. Dekker,

In a letter dated May 17, 2021, the Dutch Data Protection Authority (AP) was consulted under the provisions of Article 36, fourth paragraph, of the General Data Protection Regulation (GDPR) regarding the proposal to amend the Police Data Decision for the implementation of Directive (EU) 2019/1153 of the European Parliament and the Council of June 20, 2019, establishing rules to facilitate the use of financial and other information for the prevention, detection, investigation, or prosecution of certain criminal offenses, and repealing Decision 2000/642/JHA of the Council of October 17, 2000, concerning a framework for cooperation between the financial intelligence units of the Member States in the exchange of data (hereinafter: the draft).

The draft provides a too narrow interpretation of the obligation to obtain consent from the head of FIU-Nederland for any use for purposes other than those originally approved, allowing for processing that is much broader than the directive permits. The AP objects to this point in the draft and advises that the procedure should not continue unless the objection is resolved.

Scope of the draft

The draft aims to implement Directive 2019/1153/EU of the European Parliament and the Council of June 20, 2019, to facilitate the use of financial and other information for the prevention, detection, investigation, or prosecution of certain criminal offenses (hereinafter: the directive).

In the context of effectively combating serious forms of crime, including money laundering and underlying predicate offenses such as (tax) fraud, drug trafficking, and corruption as well as the financing of terrorism, efficient data exchange between government agencies involved in addressing this crime is important.

According to the draft, it becomes possible for data received from FIU-Nederland at the request of a law enforcement agency to be used by the same law enforcement agency for 'other purposes' than for which the data was provided by FIU-Nederland. The head of FIU-Nederland must grant consent for this prior to the use of these data. The same applies if data is forwarded to law enforcement agencies in another EU Member State.

Advice

The directive stipulates that FIU-Nederland must be able to respond in a timely manner to justified requests for financial information or financial analysis from authorized (law enforcement) authorities, if that financial information or financial analysis is necessary in the specific case. From the English

version, the wording 'case-by-case' makes it clearer what is intended: the necessity of provision by FIU-Nederland to law enforcement authorities must be assessed on a case-by-case basis. This would not be compatible if the recipient of the information were then entirely free to use the relevant information at their discretion in various other cases. The directive legislator has also recognized this and has stipulated that for any use for purposes beyond those originally approved, prior consent from FIU-Nederland is necessary.

Also, from Recital 15 of the directive, it follows that FIU-Nederland must have control over further processing of the data through consent: 'This requirement (responding to justified requests; AP) must not hinder the autonomy of the FIUs under Directive (EU) 2015/849. In particular, in cases where the requested information originates from the FIU of another Member State, all restrictions and conditions imposed by that FIU for the use of that information must be met. For any use for purposes other than those originally approved, prior consent from that FIU is necessary.'

The draft disregards the case-bound significance of the required consent by stipulating that personal data provided by FIU-Nederland may only be processed with consent if there is another purpose than for which they were obtained. According to the explanation, this does not refer to the specific application for which the data has been requested in the specific case, but in general to an application for a purpose other than investigation, such as the enforcement of penalties or the prevention of threats to public safety, evidently in

1 Article 7, first paragraph, of the directive.

2 Article 7, third paragraph, of the directive.

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following the general regime of the directive on the protection of personal data, on investigation and prosecution.<sup>3</sup>

The explanation states that the consent 'specifically relates (to) the use of data received at the request of an investigative authority from the FIU-Netherlands for a purpose other than the investigation of criminal offenses, such as the use of this data for administrative enforcement.'<sup>4</sup> And in the same vein, the explanation states that 'data that the FIU-Netherlands provides upon request to various investigative authorities can be used to prevent and investigate criminal offenses. However, it may be appropriate to also use the data received upon request from the investigative services from the head of the FIU-Netherlands for other purposes.'<sup>5</sup>

The AP is of the opinion that the concept aims to enable processing without the consent of the head of the FIU-Netherlands more than the directive allows, so a revision of the concept and adjustment of the explanation is indicated.

Disclosure of the advice

The AP intends to make this advice public on the website [www.autoriteitpersoonsgegevens.nl](http://www.autoriteitpersoonsgegevens.nl) as soon as the text of the (revised) concept is made public. The AP would like to know the expected timing of the disclosure as soon as this is known.

Sincerely,

Authority for Personal Data,

3 Application of Article 7, fifth paragraph, of this directive j0 Article 4, second paragraph, and Article 1, first paragraph, of Directive (EU) 2016/680 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons in relation to the processing of personal data by competent authorities for the purpose of preventing, investigating, detecting, and prosecuting criminal offenses or the enforcement of penalties, and on the free movement of such data and repealing Framework Decision 2008/977/JHA of the Council (OJ EU 2016 L 119).

4 Explanation, paragraph IV Implementation consequences.

5 Explanation, Article I, Parts A, B, C.

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Katja Mur

Board Member